

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tina Bhatt	Team: Team # 3	CCRB Case #: 200411869	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 11/29/2004 8:30 PM	Location of Incident: on § 87(2)(b) [REDACTED]		18 Mo. SOL 5/29/2006		Precinct: 69
Date/Time CV Reported Tue, 11/30/2004 1:49 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Tue, 11/30/2004 1:49 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. SGT David Stein	05330	898583	069 PCT
2. POM Patrick Smith	29672	931998	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT David Stein	Abuse: Sergeant David Stein stopped and questioned § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]	A . Complainant Uncooperative
B . POM Patrick Smith	Abuse: Officer Patrick Smith stopped and questioned § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]	B . Complainant Uncooperative

Synopsis

§ 87(2)(b) filed this complaint in person at the 69th Precinct on November 30, 2004. He alleged that on November 29, 2004, Sergeant David Stein and Officer Patrick Smith **stopped and questioned (allegations A and B)**, him and two others. § 87(2)(b) identified the two others simply as § 87(2)(b) and § 87(2)(b). They were later identified from stop and frisk reports as § 87(2)(b) and § 87(2)(b). He further alleged that when he asked the officers for their names and badge numbers, Officer Smith provided them but that Sergeant Stein provided only his name and a partial badge number. § 87(2)(b) stated that he believed it was only a partial number because it had only four digits whereas Officer Smith's badge number had five digits. § 87(2)(g)

§ 87(2)(b)

After two phone calls and one letter, the CCRB was able to speak with § 87(2)(b) on December 7, 2004. At that time, he agreed to be interviewed at his workplace at 2:00 p.m. on December 13, 2004. He failed to appear as scheduled. He was called at his cell number at 2:00 p.m., 2:10 p.m. and 2:20 p.m. He never answered. Messages were left each time. § 87(2)(b) was subsequently contacted at his cell and home numbers four times each. Messages indicating that the case would be closed if he did not contact the investigator by 10 a.m. on December 22, 2004 were left on each occasion. He was also sent a letter informing him of that possibility. In the meantime, the NYPD provided the CCRB with three stop and frisk reports related to this incident. One was for § 87(2)(b). The other two were for § 87(2)(b) and § 87(2)(b). The CCRB sent § 87(2)(b) and § 87(2)(b) two letters each at the addresses contained in their stop and frisk reports. The CCRB received no response to these letters. It should be noted that phone numbers for these addresses could not be obtained because according to GOAT and Metrosearch, the addresses do not exist. It should also be noted that § 87(2)(b)'s address as noted in his stop and frisk report is different from the address he provided when he filed the complaint. § 87(2)(g)

§ 87(2)(b)

it is recommended that this case be closed as complainant uncooperative.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: